



THE DIRECTOR

EXECUTIVE OFFICE OF THE PRESIDENT  
OFFICE OF MANAGEMENT AND BUDGET  
WASHINGTON, D.C. 20503

April 12, 2024

M-24-12

MEMORANDUM FOR THE HEADS OF EXECUTIVE DEPARTMENTS AND AGENCIES

FROM: Shalanda D. Young 

SUBJECT: Updated Guidance Regarding COVID-19 Safe Federal Workplace: Agency Model Safety Principles and COVID-19 Workplace Safety Plans

The President has issued the Executive Order of April 12, 2024, on COVID-19 and Public Health Preparedness and Response (E.O. of April 12, 2024), which revoked E.O. 13991 of January 20, 2021, on Protecting the Federal Workforce and Requiring Mask Wearing. E.O. 13991 had established the Safer Federal Workforce Task Force (Task Force). The Administration has determined that the Task Force is no longer necessary as the country has transitioned from an emergency response to a longer-term response to COVID-19 and pandemic preparedness in general.

In addition, the Office of Pandemic Preparedness and Response Policy (OPPR), established under section 2104 of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), is playing a critical role in the Federal Government's pandemic preparedness efforts, including by providing advice, within the Executive Office of the President, on policy related to preparedness for, and response to, pandemic and biological threats that may impact national security.

In light of the issuance of the E.O. of April 12, 2024, this Memorandum revokes Office of Management and Budget (OMB) Memorandum M-21-15 of January 24, 2021, which had required Federal agencies to develop and maintain agency COVID-19 workplace safety plans in accordance with the Task Force's model safety principles. In addition, this Memorandum instructs agencies to take the following steps as a general management practice to support the ongoing and longer-term Federal efforts in maintaining a safe and healthy Federal workplace and ensuring future preparedness, consistent with the policy in the E.O. of April 12, 2024:

- (1) Continue to maintain, update, and implement workplace safety plans. Agencies may refer to guidance from the Centers for Disease Control and Prevention (CDC), Occupational Safety and Health Administration (OSHA), and other agencies, as applicable.
- (2) Notify OMB following any significant revision to their workforce safety plans.

The Task Force website will continue to be preserved but not updated, with a banner notification referencing the termination of the Task Force and preservation of the website's contents for archival purposes only.

Prior to termination, Task Force guidance included instruction on Federal employees' use of leave in connection with the COVID-19 emergency. Going forward, the Office of Personnel Management will assume the role of providing agencies with guidance on the use of leave in various circumstances related to COVID-19 and other public health emergencies.

## **Background**

Pursuant to the now-revoked E.O. 13991, the Task Force provided ongoing guidance to heads of agencies on the operation of the Federal government, the safety of its employees, and the continuity of government functions during the Administration's response to the COVID-19 pandemic. This guidance was informed by best practices determined by the CDC and other public health experts. OMB Memorandum M-21-15 required that agencies form COVID-19 Coordination Teams to develop and maintain tailored agency COVID-19 workplace safety plans consistent with CDC guidelines and model safety principles from the Task Force that were included in the Memorandum. The Task Force and OMB worked with agencies to review, finalize, and, as needed, update such plans. Agencies completed and implemented those plans, responding to updated guidance and information from the CDC and the Task Force as conditions and recommendations evolved. For example, in August 2022, the Task Force issued implementation guidance that reflected the most significant updates to CDC guidance on COVID-19, and in September 2022, the Task Force issued updated model safety principles.

## **Agency Action**

To facilitate ongoing and longer-term work in maintaining a safe and healthy Federal workplace and ensuring pandemic preparedness, and consistent with general management practice, Federal agencies are instructed to:

- (1) **Continue to maintain and implement workplace safety plans.** Agencies should continue to maintain and implement workplace safety plans and associated policies and procedures and refer to guidance from the CDC and other Federal workplace safety agencies, including OSHA.

Agencies should anticipate that workplace safety plans could evolve over time to address broader pandemic preparedness or other workplace safety issues. Additionally, the CDC's routine public health information and guidance addresses the prevention of other circulating respiratory viruses, such as influenza and respiratory syncytial virus, in addition to COVID-19.<sup>1</sup>

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<sup>1</sup> Centers for Disease Control and Prevention Respiratory Virus Guidance <https://www.cdc.gov/respiratory-viruses/index.html>

Agencies should continue to satisfy any applicable collective bargaining obligations as required regarding any changes to plans and should provide appropriate notice of relevant plan updates to their employees, employee representatives, and onsite contractors. To the extent collective bargaining agreements (CBAs) have codified COVID-19 safety requirements with more stringent safety standards than provided in CDC guidance or agency workplace safety plans, agencies are obligated to honor the CBAs and may seek to renegotiate these requirements when the CBA is subject to renegotiation. If agencies have CBA provisions which require the agency to specifically follow or comply with Safer Federal Workforce Task Force guidance or E.O. 13991, agencies should review these provisions to determine whether they remain applicable and communicate, as appropriate, with employee representatives.

Agencies should continue to ensure that all employees, on-site contractors, and visitors to Federal workplaces are aware of workplace safety protocols, such as by updating their guidance on visitors, travel, testing, and vaccination, as well as relevant signage as needed.

- (2) Notify OMB following any significant revision to their workforce safety plans.** As a matter of management practice, agencies should notify OMB following any significant changes to their workplace safety plans.

The actions described in this Memorandum will continue to maintain appropriate consistency across agencies with respect to their processes for maintaining and updating workplace safety plans to address maintaining a safe and healthy Federal workplace and ensuring future preparedness.